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To be Argued by:
MELISSA COLÓN-BOSOLET
(Time Requested: 15 Minutes)

Case No.: 2022-02719
New York County Clerk's Index No.
152743/21

To be Argued by:
MELISSA COLÓN-BOSOLET
(Time Requested: 15 Minutes)

New York Supreme Court

Appellate Division—First Department

New York Supreme Court
Appellate Division—First Department

INTEGRATENYC, INC., COALITION FOR EDUCATION JUSTICE, P.S. 132 PARENTS FOR CHANGE, A.C., H.D. ex rel. W.D., M.G. ex rel. M.G., L.S. ex rel. S.G., C.H. ex rel. C.H., Y.K. ex rel. Y.J., A.M., V.M. ex rel. J.M., R.N. ex rel. N.N., M.A. ex rel. F.P., S.S. ex rel. M.S., S.D. ex rel. S.S., K.T. ex rel. F.T. and S.W. ex rel. B.W.,

Plaintiffs-Appellants,

– against –

THE STATE OF NEW YORK, KATHY HOCHUL, as Governor of the State of New York, NEW YORK STATE BOARD OF REGENTS, NEW YORK STATE EDUCATION DEPARTMENT, BETTY A. ROSA, as New York State Commissioner of Education, BILL DE BLASIO, as Mayor of New York City,

(For Continuation of Caption See Inside Cover)

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THE STATE OF NEW YORK, KATHY HOCHUL, as Governor of the State of New York, NEW YORK STATE BOARD OF REGENTS, NEW YORK STATE EDUCATION DEPARTMENT, BETTY A. ROSA, as New York State Commissioner of Education, BILL DE BLASIO, as Mayor of New York City,

(For Continuation of Caption See Inside Cover)

NEW YORK CITY DEPARTMENT OF EDUCATION and MEISHA PORTER, as Chancellor of the NEW YORK CITY DEPARTMENT OF EDUCATION,

Defendants-Respondents,

(For Continuation of Caption See Inside Cover)

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PRELIMINARY STATEMENT

Plaintiffs' opening brief, and supporting *amici*, showed that the IAS Court erred by dismissing for lack of justiciability a complaint that pleads classic civil rights claims involving hyper-segregation by race, exclusion of Black and Latinx students from particular schools and programs, and unsound educations and deficient educational outcomes for protected groups of students. *See e.g.*, Pls.' Br. 10-32; City Bar Ass'n Br. 3-12; NYCLU Br. 1-5, 7-21. This State's courts have long adjudicated such claims on the merits at the liability phase.

Plaintiffs showed, and Defendants fail to refute, that the IAS Court's justiciability dismissal both put the cart before the horse and completely misunderstood that cart. That is, the court (i) dismissed claims as to which City and State Defendants could be found *liable* for constitutional and statutory violations solely by pre-determining whether certain *remedies* would be justiciable, and (ii) even if remedies were now relevant (they aren't) ignored that New York law holds that any remedy *pleaded* is non-exclusive and non-binding. Beyond being contrary to law, the IAS Court's approach would make justiciability a matter of guesswork; courts would need to speculate about remedial outcomes long before merits rulings have been litigated. Reversal is required because there is no way to say at this stage that *any* remedy for proven constitutional violations would be non-

justiciable (indeed, the Complaint requests declaratory relief and injunctive relief, leaving the court to define what would be equitable based on the violations proven).

Defendants reveal the weakness of their justiciability argument by devoting much of their briefs to an independent ground for dismissal not reached below, namely failure to state a claim. *See infra* §II. But because *no Defendant* cross-appealed, failure to state a claim issues are *not* properly before this Court. *Infra* §II.A. Lack of justiciability, like lack of standing generally, results in dismissal *without* prejudice, but failure to state a claim is a merits ruling that results in dismissal *with* prejudice. Absent cross-appeal, a party cannot seek an affirmative or enlarged judgment, which converting dismissal without prejudice to dismissal with prejudice would be. Thus, Defendants' failure to state a claim arguments should be dismissed for lack of appellate jurisdiction. *Infra* §II.A. And, in any event, Defendants' failure to state a claim arguments are wrong on the merits. *Infra* §II.B.

ARGUMENT

I. THE IAS COURT ERRED IN HOLDING THAT PLAINTIFFS' CLAIMS ARE NOT JUSTICIABLE.

None of Defendants' arguments disturb Plaintiffs' showings that the IAS Court erred in dismissing liability phase claims and this entire action based on purported justiciability deficiencies as to *potential remedies* that Plaintiffs (non-exclusively) pleaded in the Complaint. *See* Pls.'-Br. 10-15 (justiciability at the pleadings stage is based on causes of action pleaded, not what remedies might be sought); *id.* at 16-27 (claims

sought); *id.* at 16-27 (claims pleaded are justiciable). Even if it were appropriate to assess potential remedies, the court erred again by ignoring that any remedy request in a complaint is non-binding and, in any event, various remedies pleaded here create no justiciability concern identified by Defendants. *Id.* §I.B.

Preliminarily, PDE's justiciability arguments are not properly before the Court, as they were "raised for the first time on appeal." *E.g.*, *Nash v. Druyan*, 183 A.D.3d 469, 470 (1st Dep't 2020). Unlike the City and State, PDE failed to argue justiciability below. PDE moved to dismiss solely based on Plaintiffs' alleged failure to state a claim. Mem. Law Supp. Mot. Dismiss, No. 152743/2021, NYSCEF Doc.121 ("PDE MTD"). PDE *never* said "justiciability." *See id.*; PDE Reply, NYSCEF Doc.184. Thus, this Court should, consistent with its usual practice, decline to consider PDE's arguments newly raised on appeal to the extent they differ from those of the City and State. *E.g.*, *Nash*, 183 A.D.3d at 469.[2]

At most, in arguing that particular aspects of Plaintiffs' Education Article count failed to state a claim, PDE offered a solitary sentence tangential to justiciability:

[1] At most, in arguing that particular aspects of Plaintiffs' Education Article count failed to state a claim, PDE offered a solitary sentence tangential to justiciability: "Plaintiffs' curriculum claims are policy claims, not constitutional claims." PDE MTD 9; *id.* (concluding the Education Article "does not mandate Plaintiffs' preferred curriculum in every New York school" and relying on *Campaign for Fiscal Equity, Inc. v. State*, 86 N.Y.2d 307, 317 (1995) ("CFE I"), a non-justiciability decision).

[2] The case for considering new arguments by an intervenor is even weaker than for an original party, especially where the defendants have preserved an issue. *Cf., e.g.*, *Custom Topsoil, Inc. v. Buffalo*, 12 A.D.3d 1168, 1169 (4th Dep't 2004) (declining to consider intervenor's newly raised standing challenge).

A. The IAS Court's evaluation of potential remedies was premature upon motions to dismiss.

First, with respect to Plaintiffs' showings that the IAS Court decided justiciability solely on the bases of (perceived) requested remedies and that doing so was legally improper, *see* Pls.'-Br. 1, 8-16, 27-32, Defendants really have no rejoinder. Instead, Defendants double-down on the notion that it is proper to consider potential remedies in assessing whether liability claims can be dismissed on the pleadings. *See* State Br. 12, 20-21 (discussing relief sought, despite failing to cite any case affirming pleadings-based dismissal based on potential remedy); City Br. 28-32 (similar). But that flies in the face of the cases Plaintiffs identified and even those on which Defendants rely. For example, the City and State repeatedly cite the Court of Appeals' *CFE* cases in arguing against justiciability, *see* State Br. 17, 22-23, 27-28, 30; City Br. 23-24, and do likewise with *Center for Independence of the Disabled v. Metropolitan Transportation Authority*, 184 A.D.3d 197 (1st Dep't 2020), *see* State Br. 21 n.6; City Br. 25-26, 31. But they somehow overlook (despite Plaintiffs' showings, *see* Pls.' Br. 12-13, 15) that:

(1) *CFE I* held, upon a motion to dismiss, that discussion of remedy "is premature, because the only issue before the Court at this time is whether '[P]laintiffs have pleaded a viable cause of action.... The question of remedies is not before the Court," 86 N.Y.2d at 316 n.4; and

(2) *Center for Independence of the Disabled* found justiciability and criticized the State defendants precisely for founding their justiciability arguments "only on [an] aspect of plaintiffs' prayer for relief." 184 A.D.3d at 208.

These and other such authorities remain dispositive.[3]

Likewise badly off-base is Defendants' reliance on *Klostermann v. Cuomo*, 61 N.Y.2d 525 (1984). Invoking *Klostermann*, they claim that dismissal for lack of justiciability was appropriate because (i) it is improper for courts to "intrude upon the policy-making and discretionary decisions that are reserved to the legislative and executive branches," and (ii) courts supposedly "have long refrained from intervening in disputes" involving educational issues. State Br. 13; *see* City Br. 10, 23. This is all wishful thinking and ignores Plaintiffs' showings. To begin, Plaintiffs showed (and Defendants cannot contest) that *Klostermann* reversed the dismissal of claims for lack of justiciability and did so even where remedy was squarely at issue because plaintiffs had filed a petition seeking a "declaratory judgment and mandamus." 61 N.Y.2d at 537; *see* Pls.'-Br. 13-14. Moreover, as Plaintiffs showed,

[3] *See, e.g.*, Pls.'-Br. 13-17 (collecting similar); *Red Oak Fund, L.P. v. MacKenzie Partners, Inc.*, 90 A.D.3d 527, 529 (1st Dep't 2011) ("premature" to consider proof of damages upon motion to dismiss). As for the State's assertion that "the remedies sought by plaintiffs highlight the lack of judicially manageable standards to redress the *harms alleged*," State Br. 20, the IAS Court's one-paragraph decision struck no such nuance. Regardless, the State's assertion is wrong insofar as many of the standards relevant here are straightforward to judicially administer (*e.g.*, whether students of color are being admitted to specialized high schools and enhanced programs, whether those students are graduating, etc.).

facilities"). The same result should follow here. The time for identifying proper remedy is down the road, after the courts have adjudicated the merits of the claims presented here, certainly not today. Nothing about this case's current posture nullifies the Court of Appeals' directive that it is the province of the judicial branch" to adjudicate alleged violations of constitutional and statutory rights. *See CFE II*, 100 N.Y.2d at 925; *accord Levittown*, 57 N.Y.2d at 39.

II. DEFENDANTS' FAILURE TO STATE A CLAIM ARGUMENTS ARE NOT PRESERVED FOR APPEAL AND, IN ANY EVENT, ARE MERITLESS.

A. Because Defendants neglected to cross-appeal, this Court lacks appellate jurisdiction to consider Defendants' failure to state a claim arguments.

The order under review resolved only justiciability and did not reach Defendants' arguments on failure to state a claim. R.8. Plaintiffs appealed regarding justiciability. Without cross-appeals, Defendants nevertheless ask this Court to dismiss this action on an entirely different basis—failure to state a claim—that would trigger an entirely different judgment (dismissal *with*, not *without* prejudice). State Br. 25; City Br. 35; PDE Br. 36. This Court lacks appellate jurisdiction to consider Defendants' efforts to obtain that different judgment.

Appellate review is "generally limited to those parts of the judgment that have been appealed and that aggrieve the appealing party" and courts do not grant "affirmative relief to a non-appealing party[.]" *Hecht v. City of N.Y.*, 60 N.Y.2d 57, 60-61 (1983). Cross-appeal is necessary for appellees to seek affirmative relief. *See 511 W. 232nd Owners Corp. v. Jennifer Realty Co.*, 98 N.Y.2d 144, 151 n.3 (2002); *Jennings v. Stephens*, 135 S.Ct. 793, 798 (2015) ("[A]n appellee who does not cross-appeal may not 'attack the decree with a view ... to enlarging his own rights thereunder....'") (citations omitted).

60-61 (1983). Cross-appeal is necessary for appellees to seek affirmative relief. *See* *Jennings v. Stephens*, 135 S. Ct. 793, 798 (2015) ("[A]n appellee who does not cross-appeal may not attack the decree with a view … to enlarging his own rights thereunder…") (citations omitted).

Converting a dismissal without prejudice to one with prejudice constitutes affirmative relief. *See, e.g.*, *Burnett v. Warner Bros. Pictures*, 113 A.D.2d 710, 712 (1st Dep't 1985) (explaining that plaintiffs' appeal argued that their causes of action should not have been dismissed "without prejudice, for lack of subject matter jurisdiction," whereas "on *their cross-appeal* [defendants argued] that plaintiffs' complaint should have been dismissed *with prejudice*") (emphases added), *aff'd*, 67 N.Y.2d 912 (1986); *9 Montague Terrace Assoc. v. Feuerer*, 191 Misc. 2d 18, 19 (2d Dep't 2001) ("The Housing Court dismissed … but provided that the dismissal was without prejudice. Tenants appeal, arguing that the dismissal should have been with prejudice…."). But that is precisely what Defendants attempt to do, despite failing to cross-appeal. As the Court of Appeals' decision in *N.Y. State Inspection*—upon which PDE heavily relies—makes clear, a justiciability dismissal constitutes a dismissal for lack of subject matter jurisdiction. *Matter of N.Y. State Inspection v. Cuomo*, 64 N.Y.2d 233, 241 n.3 (1984) ("Since nonjusticiability, whether by reason of political question or non-ripeness, implicates the subject matter jurisdiction of the court, respondents properly predicated their motion to dismiss upon CPLR 3211[a][2]....") (cleaned up). This is fatal to Defendants' ability to raise any failure to state a claim-related issue here because dismissals for lack of subject matter jurisdiction are without prejudice.

For example, where "the parties dispute[d] whether the action should be dismissed with or without prejudice," this Court held that "the action was correctly dismissed without prejudice, because the dismissal is based on lack of standing, not on whether by reason of political question or non-ripeness, implicates the subject matter for lack of subject matter jurisdiction. 64 N.Y.2d at 241 n.3 ("Since nonjusticiability,

For all these reasons, even if the failure to state a claim arguments were preserved for appeal (they are not) and this Court elected to reach them, Defendants' arguments for dismissal all fail.

CONCLUSION

For the reasons set forth above and in the opening brief, the Court should reverse the IAS Court's order dismissing this entire action as non-justiciable.

Dated: August 18, 2023
New York, New York

Respectfully submitted,

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I hereby certify pursuant to 22 NYCRR 1250.8(j) that the foregoing brief was prepared on a computer using Microsoft Word.

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STATE OF NEW YORK)
) ss.:
COUNTY OF _____)

_____, being duly sworn, deposes and says:

deponent is not a party to this action, is over 18 years of age, and resides at _____.

On the _____ day of _____, 20____, deponent served the within brief upon each attorney for each party to this appeal by delivering a copy to the attorney for that purpose, by _____, and by _____.

_____
Sworn to before me this
_____ day of _____, 20____

_____
Notary Public